

Mothers and Madness

The “Aftershocks” of the system

One New York protective mother referred to her shattering experience in the family courts as a “moral earthquake.” Because descriptions like this have often been offered to us by protective mothers, this mother’s words are worth some consideration.

What did she mean by calling family courts a “moral earthquake”? Essentially, she meant that the foundation of her entire belief system had been shaken when she saw how courts, child welfare agencies, and their auxiliaries could turn so fiercely against her when she had done, as she said, “absolutely nothing wrong.” She told us she felt “utter confusion” and difficulty “navigating” this “new world” of the family courts. All that had been familiar was gone: not only her six-year-old daughter but everything else that had seemed reliable. She had been financially secure; now she sank deeper and deeper into debt trying to defend herself against charges that she had “brainwashed” her child. She had been a respected authority in a modern academic field; the family court judge simply refused to believe that she had lectured extensively and published significant articles (although she had). No one had ever questioned her personal competence, either; now, at public appearances during which she described her case, she had to defend against “officials”

who would slander her as “insane” or “paranoid schizophrenic” (which she was not).

Worst of all, what she had believed about America—the land of democracy, freedom, justice—was severely challenged. She had confronted a Kafkaesque court system that seemed to operate outside the law.

Another New York mother echoed these feelings several years later when she, too, became trapped in the bizarre world of the family courts. She told *New York Post* columnist Amy Pagnozzi: “You have to live through this to believe it.”¹

It is therefore not terribly surprising that some protective mothers are profoundly affected by their family court experience. In some cases the effects are so great that mothers behave in ways that, were it not for their family court experience, would have been quite alien to them. In this chapter we examine some of the “aftershocks” of the family court earthquake—the sociological and psychological consequences to mothers who rebel against the system. We look at what has happened to mothers who fled with their children and to those who stayed behind to resist.

PROTECTIVE MOTHER “SYNDROMES”

We believe that certain patterns of emotional response can be identified in protective mothers who have been attacked through the family court system. These “syndromes,” as we will call them, seem to us to result from several features found together in such litigation: mothers have witnessed their children suffering and have found themselves unable to protect them; they have felt betrayed by a system they believed would help their children and themselves; they have been victims of verbal and legal attacks from family court “experts,” child welfare personnel, and family court judges; they have lost their children, and in many cases even access to their children, as a result of the system. We will describe

these “syndromes” in this chapter. Importantly, although we refer to these common forms of behavior associated with protective mothers as “syndromes,” we are by no means “pathologizing” a mother’s response to the trauma of losing her children in the family courts to a sexually abusive ex-spouse or ex-partner. Specifically, our use of the term “syndrome” refers to a natural sociological phenomenon we have identified in the protective mother population—rather than a psychological condition that connotes maladjustment or psychopathology.

“Hunted” Syndrome

The constant feeling of being hunted is common in mothers who have become family court victims. Significantly, the feeling surfaces in mothers who are *not* fugitives, just as it does among mothers who are. Those who take their children and try to hide from the police have obvious reasons to feel hunted. Their lives become a long series of “safe houses” in which they remain confined during the day, sheets or blankets covering the windows—venturing out only at night, and even then usually in wigs or other disguises. They are always afraid that, without a moment’s notice, FBI agents or local police will descend on them. Capture and imprisonment is not their worst fear in such circumstances; worse than that is the fear of what will happen to their children, who are seldom allowed to see their mothers again and are usually returned, even against their will, to the fathers they have accused of abusing them.² And, as a matter of fact, nearly 80 percent of mothers who go into hiding with their children are caught by the FBI within the first six months.³

This fear is intensified by the isolation of fugitive mothers. Living on the run, these mothers are cut off from all that is familiar to them. In addition, fugitive moms are unable to develop new support systems; they cannot freely meet other parents and are often hesitant even to take their children to a playground for fear of getting caught.

“Hunted Syndrome” can lead to fatal mistakes. In 1996, a mother from Maryland died because she ignored a lump she had found in her breast while on the run. As a fugitive (with her daughter), she feared getting medical help because of the possibility that her medical records could lead the FBI to her. Her tumor was malignant, and it eventually killed her.

Protective mothers who are not on the run can feel equally threatened. They are not hunted by the FBI but may very well feel persecuted by Child Protective Services (CPS), and their emotional reactions are very similar. Moreover, they often suffer the loss of emotional “support systems” no less than those who become fugitives. University of Illinois researchers Carol Rippey Massat and Marta Lundy (1998) found that “[f]ifty-four percent [of mothers] reported that after disclosure [of sexual abuse] some family members were dissatisfied, and 35 percent reported that family members were angry. Forty-one percent indicated that some friends became less friendly”⁴ The combination of relentless pursuit by family court and its auxiliaries and the erosion of support and comradeship gives rise to “Hunted Syndrome”.

Consider the case of a Brooklyn, New York, mother who was a schoolteacher with a master’s degree in education. After two anguished years in a custody battle against her ex-husband—who was supported by CPS despite evidence that he had sexually abused both children—she was forced to quit the job she loved because of the number of days she had to take off for court appearances and court-ordered mental health examinations for herself and her children. CPS’s lawyer grilled the mother for twenty-one days, accusing her of having “brainwashed” her two young daughters (ages four and seven) into believing they had been sexually abused. At the end of the interrogation, CPS formally charged her with child neglect, “for instilling in the children a fear of sexual abuse by the father.”⁵

At that time, the mother told one of us she felt that “the system is chasing me down,” and she could not understand why. Both of her

girls had physical symptoms of sexual abuse. The younger child's anus was infected with a sexually transmitted disease (chlamydia); "the older daughter's vaginal canal was found to be rounded instead of oval, roughened instead of smooth, and there was a stretching of the hymen."⁶ In addition, the children were already showing signs of severe trauma. According to a newspaper columnist who covered the trial, her younger daughter "pulled a plastic bag over her head and said she wanted to die."⁷

But while the mother was forced by court order to send these girls on unsupervised weekend visits with their father, she was facing the pressure of CPS persecution. She was in constant fear of the agency's surprise visits, which took place about twice a week, always at different times so that she could not prepare for them. During the unannounced inspections—which took anywhere from one to two hours—the case-workers would search the entire apartment, including private dresser drawers in her bedroom, looking for some sign of "brainwashing" materials, such as a book on how to recognize signs of sexual abuse in one's child. The mother knew that even the slightest hint of "brainwashing" would be held against her and would affect the fate of her children.⁸

The mother's sense of being "hunted" affected her daily behavior. Every morning, after sending her children to school and doing the minimal necessary chores, this woman found herself almost "paralyzed." She would stand at the window in her apartment with her eyes fixed on the huge clock atop the building housing the CPS agency that controlled her life. All she could think about, for hours at a time, was the agency's "threat" (which she related to one of us) that if she were to make any further reports of her children being sexually abused during weekend visits with their father, the court would see to it that she lost custody of her children. Unable to concentrate on any other subject, she stopped reading newspapers and withdrew from family and friends.

In the end, the persecution was more than she could bear; between the continuing evidence of abuse (which the court utterly ignored) and

CPS's persecution, she came to believe that defeat was inevitable and took her children into hiding. Naturally, this gave the family court judge the needed rationale to transfer custody of both children to the father. However, the mother and her daughters eluded capture—their whereabouts remain a mystery. Questioned about the case years later by a reporter, the family court judge continued to claim he had acted properly and blamed the mother's flight for her loss of custody. But would she ever have defied the law, or a court order, had it not been for CPS's relentless pursuit—before she ever ran?

A similar irony can be seen in the case of an Idaho protective mother who was accused of causing her children to believe they had been sexually abused by their father. No evidence in the record suggested any history of paranoia. No mental health expert in the case diagnosed the mother as paranoid, despite the entire system's manifest hostility toward her.

In the course of family court litigation, two of her minor children were removed from her with no legal justification, based on evidence that was not shared with her or her lawyer. Her child support was slashed on flimsy grounds, she was repeatedly maligned by the judge, and her ex-husband's attorney seemed deliberately to serve her with threatening court papers just before family holidays.

After several years of this treatment, when the father sought full custody of the minor children, the mother allegedly began to exhibit some peculiar behavior, including missing court appearances. A new family court judge, awarding custody to the father, said that he based his opinion of the mother's mental state on the behavior he himself had witnessed. But this apparently objective approach was in fact grossly unfair: it ignored the extent to which the mother's fear of court appearances and extremely anxious behavior resulted from what she had experienced in family court. A fear of being hunted does not suggest insanity in someone who really has been hunted.⁹

“Lost Limb” Syndrome

Author and researcher John Edward Gill has chronicled how mothers cope with the loss of their children to the other spouse. Although his 1981 book¹⁰ focused exclusively on mothers whose children had been kidnapped by their ex-husbands, rather than mothers who lost all contact with their children as the result of a family court order, the psychological effects he observed are felt by protective mothers who have lost custody: “their lives stop—emotions frozen ... houses go uncleaned. Phones go unanswered, doorbells ignored. Some act like sleepwalkers, eyes glazed, their thinking distracted....”

In 1987, a Queens, New York, protective mother coined the term “Lost Limb” Syndrome to describe how she felt when she lost custody of her five-year-old daughter. She meant that her loss felt as if she had lost her arm or leg and could never feel whole again.¹¹ Five years later, another protective mother, late at night after the day she lost custody of her three-year-old daughter, wrote some verses that display similar feelings:

My tears flow unending
And all I have left is my grief
The memories of my daughter are still with me
Yet, thoughts of her don't bring relief
Gaps in my memory Silent photos I watch
Trying to see
And hear laughter
Hours can go by
Spiraling deeper in thought....¹²

Mothers suffering from Lost Limb Syndrome may actually feel they are *personally* damaged, no longer capable of mothering. A California mother, for example, after losing custody following a lengthy trial (in which she was accused of coaching her child to make up sex abuse charges against the father), decided not to remarry and told one of us

that, even if she did remarry, she would try not to have any more children.

In fact, some protective mothers speak of themselves as if they were literally incapable of having children. One Florida mother, for example, told us she stopped going for annual ob-gyn examinations after she was deprived of custody. She said, "It's useless to go for an exam . . . after all, what do I have left in the reproductive department?" A Washington State mother, after losing custody of her son to an allegedly sexually abusive father, went further than that: she told one of us that she actually had herself sterilized while in her mid-thirties, even though she intended to remarry (and later did). Protective mothers often use the word "emptiness" to describe a grief in which they mourn children who are still alive. They often speak of yearning to hold their children, to put them to bed at night, kiss them in the morning. Instead, their houses contain empty cribs and beds, tables with an extra chair.

Another special aspect of protective mothers' grief is that time becomes their enemy. Severed from their children's lives at an early age, deprived of contact with them as they grow up, these mothers fight a losing battle against the calendar, remembering their children as they were when they were taken away—unable to cross the widening abyss between the child they lost and the much older one who inhabits a time and place alien to them. One protective mother kept her six-year-old daughter's room unchanged for more than ten years after the girl was removed by an *ex parte* court order, the little girl's clothes and toys waiting for her—waiting, that is, for a return that never came. At first this was a gesture of hope. As the days from removal became months, the months years, that room, frozen in time, became a kind of open household wound.

“Masochistic Mother” Syndrome

Some protective mothers, despairing of any other way of regaining their children, try to endure whatever the family courts and CPS want them to suffer, simultaneously begging the court and its auxiliaries for the return of their children. They seldom succeed. But this pattern of behavior may continue anyway once it has begun.

Taken to its extreme, this pattern can end with the mother's suicide. In 1993, a Rockland County, New York, protective mother killed herself—and her child—with the exhaust fumes of her car. She had been faced with both a hostile family court system and an ultra-Orthodox Jewish community that had strongly sided with her ex-husband (who had been credibly accused of sexually abusing the child).¹³

Her tragic act was, in her eyes, the only way to remove herself, and her child, from a system she saw as bent on destroying both of them. She had come to feel that resistance was hopeless. The judge and law guardian, ignoring evidence of sexual abuse that included the testimony of the child's nursery school teacher and a leading sex abuse validator (who was chosen by the judge himself), had repeatedly threatened her with loss of custody if she persisted in believing the allegations of abuse. Just days before her suicide/homicide, this mother had called a New York State legislative office sympathetic to the plight of protective mothers and said: “I'm so afraid my child will end up like all the rest of the children who have been forced to live with sexually abusive parents.” And when the court formally rejected the abuse allegations against her ex-husband and the law guardian (according to the mother) sneeringly told her she would have “the fight of her life” just to retain custody, she had had too much.¹⁴ Self-destruction seemed the only way out.

Hers is not the only such case. Just a few years earlier, the *New York Daily News* reported that two Brooklyn mothers killed themselves after long court battles in Brooklyn Family Court.¹⁵

DAMAGED LIVES

In some cases, the injuries suffered in family courts impel protective mothers to self-damaging choices, made essentially out of fear and insecurity. For example, some mothers who remarried after their family court experiences have stayed in bad marriages rather than undergo a divorce in the court system they have learned to fear. In some cases, protective mothers have actually agreed to give up custody of children (born in a later marriage) just to avoid going back to family court. For example, one Texas protective mother, faced with a custody battle in her new marriage, declared: “After spending three years in the family courts, it’s a place I could never go back to.” She then “consented” to giving custody to her new husband—a decision she admits was made out of fear.

A mother from Woodstock, New York, who lost custody of her son in the early 1990s after repeated CPS intervention (allegedly instigated by her former husband), fled to Mexico with her new partner and gave birth to a daughter there. The mother feared that the record built up against her by CPS, although undeserved, would prejudice her with her new child unless she stayed out of the United States altogether. Tragically, this mother’s attempts to escape the courts had dire consequences. Living in poor conditions in a rural Mexican town, the mother contracted hepatitis B and died on her way to the hospital. She was forty-one and had been in good health until then. Still other women put up a wall of denial around the damage they suffered in family courts. One of us has spoken to women who, after losing custody, have moved to a different part of the country and have remarried—not even telling their new husbands that they ever had children.

One North Carolina woman—now a high-level employee of the federal government—told one of us she had lost a child ten years earlier, to a man who had instigated CPS to remove the child from her after she brought sexual abuse charges against him. After she lost custody—and

all visitation rights, too—she moved away and went back to school to complete her education, never disclosing to her new husband or to any of her colleagues that she ever had a child. Other mothers we have interviewed gradually pulled away from their friends who had children, finding it too painful to participate in their friends' conversations about children. Some protective mothers actually made a point of becoming professionals, surrounding themselves with career-oriented women who they thought would be less likely to have a family.

DAMAGED PSYCHES

Protective mothers suffer more than the loss of a child. They also suffer deep feelings of helplessness and of remorse for having been unable to protect their children. In 1991, a Colorado protective mother lost custody of her four-year-old daughter after she reported alleged sexual abuse by the father.¹⁶ A year later, her only contact with her daughter was one hour a week of tightly supervised visitation. Although she had no history of depression, she took antidepressant medication for two months. Then she testified before a congressional committee about the pain of being unable to save her child:

I am the mother of a precious 5-year-old girl. My child has been the reason for my existence. For the past 3 years my whole being has been geared toward saving her from abuse. Fighting the system both body and soul has turned me into what the system has made and labeled me, an "hysterical mother." ... There is no one, not even with the loss of a child through death, who could suffer more than a mother unable to save her child. That is the worst suffering of all.¹⁷

She gave a court-appointed expert an even more vivid picture of her despair over her helplessness:

As her mother I have listened to her cries for help to friends, family, doctors, psychologists, social workers, and police, and I have watched her be let down and not protected. She used to say, “you will protect me Mom” and *I feel that I, too, have let her down*. All of these people tell her they are here to help her, but no one has been able to help her. I keep telling her I am still trying but it is very difficult after two years. I think she may begin accepting this as a way of life and there is no hope.¹⁸

This Colorado mother told one of us that her grief over the loss of her daughter was at its worst right after she left her child after each one-hour supervised visit, because that was when she felt most keenly aware of her own helplessness. After each such visit, she had to face the realization that her daughter would be going home to her father—the man the girl had said abused her. Yet the mother was not even allowed to talk to her child about her feelings, let alone the child’s fears and almost certain sense of having been betrayed by the mother who was supposed to protect her.

This mother did make what efforts she could to fight the system in which she was trapped. Although forbidden by court order to speak at press conferences or to the media about her case, or about the protective mother problem at large,¹⁹ she defied the “gag” order and became a leading spokesperson for other mothers. She made several trips to Washington, DC, lobbying for new laws to protect mothers and children, and organized many rallies and candlelight vigils, which gave hope to other mothers in similar predicaments. After several years, her efforts won her unsupervised visitation with her daughter—a small accomplishment but not negligible in the world of family courts.

SELF-DESTRUCTIVE VIGILANTISM

In a few cases, the psychic damage wrought by family courts has driven protective mothers to hostile, illegal, or dangerous behavior. In 2003, a New York City mother took the law into her own hands, deciding to confront, in her own way, the judge who had removed her daughter from her. The result: she received a jail sentence after being charged with making harassing calls to the judge's chambers, writing threatening letters, and even stalking the judge (a woman) to her home.²⁰

This mother had no criminal record before being jailed for contempt of court. Before she was entangled in the family courts, she had a perfectly respectable social and professional history. She lived in an apartment building, where she was well liked by her neighbors of more than ten years.

All this changed after she endured a six-year battle in a futile effort to regain custody of her daughter from her ex-husband. Medical evidence showed "an adhesion of the hymen to the interior aspect of the labia minora," which doctors found consistent with sexual abuse; the seven-year-old girl stated that her father had "touched her vagina on multiple occasions with his hand, tongue and penis."²¹ In fact, the local CPS agency filed formal charges alleging that the father had sexually abused the girl. But—consistent with the pattern we examined in Chapter 6—the mother was also charged with "neglect," CPS claiming she "should have known about the abuse, but failed to take any steps to protect the child from further abuse."²²

As in other cases we have presented here, CPS's accusations turned out to be cynical; after several months, during which the child—on the strength of the bilateral charges against both mother and father—was in foster care, the agency dropped the charges against the father. However, even though this should have meant the automatic dismissal of the "failure to protect" charge against the mother (since the charge assumed the occurrence of abuse by the father), the child was not in fact returned

to the mother. The child was eventually given into the father's custody. After the court ordered the change of custody, the mother became a hyper-activist. Struggling in vain against a hostile court system, she began to see the judge as a personal enemy and herself as a warrior unconcerned with rules. She created her own cable television program and used it to attack the judge, while publicizing other family court cases as well. Her actions—which were ultimately found to violate court orders—were intended to intimidate her “enemy.” As for the consequences, she told one of us: “They already did the worst they could to me by taking my child, so what else did I have to lose?”

One would be hard pressed to say this mother was “crazy.” She was never diagnosed with any serious mental illness and had never committed any crime (apart from defying a judge's orders). She had been capable of forming a close bond with her daughter, which is rarely possible for truly paranoid mothers. In fact, very few protective mothers of whom we have been aware were actually “crazy” in any clinical sense. Protective mothers earn the label “protective” by having a very strong bond with their children in the first place. They deplete their life savings fighting for protection from the courts; they move in with family members for shelter; and they endure years of arduous court battles. None of this is typical of the mentally ill. Therefore, when a victim of family courts behaves in a fashion that would ordinarily justify the label of mental illness, we must seek the cause in something other than a diagnosis of mental illness.

This is equally true of those rare protective mothers who resort to violence. A Maryland mother whose children were allegedly sexually abused is now serving a prison sentence for conspiracy to commit her ex-husband's murder.²³ Yet, before her ordeal in the family courts, this mother had never committed so much as a traffic violation. Nor was she found to be insane by the court-appointed evaluator, who also found no evidence of a “conduct disorder” in any of the tests he had administered to the mother.

But family court changed her. First, her allegations that the children's father had sexually abused them were ignored, despite the reports of psychologists who found no evidence that she had coached the children to report what they did. (The children reported spontaneously that their father had kicked one boy in the crotch, tickled his private parts, withheld food from him, ridiculed his artwork, and threatened to kill him and his mother by setting fire to their house. In addition, one of the elder boy's teachers reported to the boy's therapist that the boy had flinched when the teacher placed his hand near the boy's head; this teacher commented that "he had seen that before in children who've been abused, and that really bothered him.")²⁴

Next, the law guardian appointed to protect the boys, having failed to persuade a Maryland court to remove the children from the mother, secretly went to officials in the District of Columbia and got an *ex parte* removal order from a court there—apparently on the strength of misrepresentations of fact made to caseworkers. Then, when the children had been removed from her, the mother was restricted to minimal, supervised visitation.

The mother reported to one of us that her boys continued to describe being abused by their father, but DC caseworkers and police officers were openly contemptuous of her reports. One DC official claimed—without any basis in the record—that she feared the mother would kill both her children and herself if she had the opportunity. The law guardian continued to claim that the mother was dangerous, even though this was not the finding of any mental health professional in the case.

Branded insane, watching a lawless process unfold around her, helpless to protect children she believed were being abused, accused of planning murders, the mother finally did in fact undertake a crime. In January 2002, she arranged with her closest friend (and supporter in her belief that the children's father had abused them) for the friend to break into the father's home and kill him with a 9-millimeter pistol. Her friend entered his house, according to prosecutors, with child pornography

(intending to leave it as evidence of pedophilia) and shot him once in the leg. He managed to wrest the gun from her and called the police. Both women were soon arrested and eventually convicted: the mother's friend of attempted murder, the mother herself of conspiracy to commit murder.

It is typical of the popular attitude toward such stories that although these incidents received prominent treatment in weekly magazines²⁵ and many newspapers, not one article adequately described the mother's agonizing experience in the family courts, or the shocking removal of her children through underhanded legal maneuvers and misrepresentation of facts, or the fact that the lawyer appointed to protect children who claimed their father was abusing them had insisted that the father should have custody, or the prejudices against her expressed by DC officials. They did not even comment on the crowning irony: that after the mother, imprisoned, told a judge she cared about nothing but her children, it was the boys' law guardian—the lawyer who had bent the truth to deprive the mother of custody in the first place—who persuaded the court to deny her request to have the children visit her, even though there was no evidence that she posed any danger to them. (The law guardian called her a “stressor.”)²⁶ And, certainly, when these things are considered, the mother's crime—committed by a previously law-abiding woman—takes on a different aspect. No one is likely to condone the mother's actions. But they were, in part, an indictment of the family court system, a fact that so far has not been acknowledged in the popular press. It might be comforting to believe that protective mothers are all like this one and that courts are therefore justified in dealing harshly with them. In fact, the only thing really unusual about this case is the mother's violence. Apart from that, the madness of the case is common ground for protective mother cases all over the country—and, as with the other aftershocks treated in this chapter, this tragedy started with the system, not the mother.